

late Wills Act, where nothing in the context implied a limitation of the fee, a chattel interest only would have passed. But, if a greater estate be limited expressly, as by a devise to A. and *his heirs* upon trust to pay debts, the Court has no jurisdiction to cut down the expression and reduce the estate to a chattel (*c*); though if a chattel interest be carved out of the fee and be so limited, the word "heirs" may be rejected as inconsistent with the estate, as where lands are devised to trustees and their *heirs*, until an infant attains twenty-one, and then to the infant in fee (*d*).

5. **Grant to two and the heirs of the survivor.** — If an estate be *granted* to two, and the survivor of them, and the heirs of such survivor, they are not joint tenants in fee, but take a freehold for their joint lives, with a contingent remainder to the one that may happen to survive. The same construction will be put upon a *devise* expressed simply in the same terms without any trust annexed, or even if there be a trust, provided the nature of it do not require the fee simple to be vested in the trustees (*e*). But if such a devise, even to beneficiaries, be coupled with words pointing to a joint tenancy, the construction will be a joint fee, as if the gift be to two and the survivor of them and *their heirs* (*f*), or to them as *joint tenants*, and the survivors and survivor of them, and the heirs and assigns of such survivor (*g*). And if the devise be to two and the survivor of them, and the heirs of such survivor upon trusts that require the fee simple to be vested in the trustees, or upon trust for *sale*, the prevailing opinion is, that notwithstanding the old case of *Vick v. Edwards* (*h*) to the contrary, the Courts would compel a purchaser to accept a title on the assumption that the trustees took the fee simple (*i*). "Whatever doubts," observes

(*c*) *Wright v. Pearson*, 1 Eden, 119, see p. 123.

(*d*) *Goodtitle v. Whitby*, 1 Burr. 228; *Doe v. Lea*, 3 T. R. 41; *Warter v. Hutchinson*, 1 B. & C. 721; and see *Ackland v. Lutley*, 9 Ad. & Ell. 879; but see *Lethieullier v. Tracy*, 3 Atk. 780, *Fearne's C. R.* 226, *Butler's* note.

(*e*) *Re Harrison*, 3 Anst. 836.

(*f*) *Doe v. Sotheron*, 2 B. & Ad. 628; *Oakley v. Young*, 2 Eq. Ca. Ab. 537.

(*g*) *Goodtitle v. Layman*, *Fearne's C. R.* 358.

(*h*) 3 P. W. 372.

(*i*) See *Doe v. Ewart*, 7 Ad. & Ell. 636; *Doe v. Sotheron*, 2 B. & Ad. 628.